Syllabus

MULLIN, SECRETARY OF HOMELAND SECURITY, ET AL. *v.* AL OTRO LADO ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

No. 25–5. Argued March 24, 2026—Decided June 25, 2026

The Immigration and Nationality Act of 1952 (INA), 66 Stat. 163, governs the process by which an alien who "arrives in the United States" is inspected by border officials, is deemed an applicant for admission, and may apply for asylum. The question in this case is when an alien who seeks to enter the United States from Mexico "arrives in the United States" within the meaning of that phrase in two key INA provisions—8 U. S. C. §§ 1158(a)(1) and 1225(a)(1): when the alien is standing in Mexico at the border, or only when the alien crosses the border and enters the country?

In the spring of 2016, U. S. Customs and Border Protection (CBP) began experiencing a surge of aliens seeking admission at ports of entry along the U. S.-Mexico border, with numbers sometimes far exceeding safe and secure processing capacity. In November 2016, the Department of Homeland Security responded by adopting a policy of "metering" the number of arriving aliens whom CBP would inspect each day and allow to apply for asylum. To enforce the policy, officials stood on the U. S. side of the border and prevented aliens from entering the United States beyond the number the port could adequately process. The metering policy continued through the change in Presidential administrations. In 2017, asylum seekers and the immigration-advocacy organization Al Otro Lado brought a putative class action against the Government in the United States District Court for the Southern District of California, arguing that CBP's enforcement of the metering policy unlawfully withheld inspection and asylum processing from aliens who arrive at the border and seek to enter the United States. The District Court certified a class of all noncitizens who seek or will seek to access the asylum process by presenting themselves at certain ports on the U. S.-Mexico border and were or will be denied access to that process by CBP officials. The court granted summary judgment for the class and declared that the Government's denial of inspection and asylum processing to class members who are in the process of arriving in the United States is unlawful regardless of the purported justification for doing so. The Government rescinded the metering policy in November 2021, shortly after the District Court entered summary judg-

Page Proof Pending Publication

ment. A divided panel of the Ninth Circuit then affirmed in relevant part, holding that an alien "arrives in the United States"—and thus must be inspected and may apply for asylum—when the alien, while standing on the Mexico side of the border, encounters a United States official at the border.

Held: An alien standing in Mexico does not "arriv[e] in the United States" by attempting, and failing, to set foot in this country. An alien "arrives in the United States" only when he crosses the border. The INA thus neither entitles an alien standing in Mexico to apply for asylum nor requires an immigration officer to inspect him. Pp. 268–278.

(a) This case is not moot. The District Court's declaratory judgment, which the Ninth Circuit affirmed, continues to bar the Government from using metering to deal with border surges within the jurisdiction of the Ninth Circuit. The Government represents that it would like to resume the use of metering when border conditions warrant it. The controversy remains live because a ruling for the Government could reverse the declaratory judgment and thus give the Government the effectual relief it seeks. *Chafin* v. *Chafin*, 568 U. S. 165. P. 268, n. 7.

(b) The phrase "arrives in the United States" in §§ 1158(a)(1) and 1225(a)(1) carries its ordinary meaning: A person arrives in a geographic location only when he enters it. To "arrive" is to "reach a destination," American Heritage Dictionary 102, and the preposition "in" means "[w]ithin the limits, bounds, or area of" a place, *id.*, at 910. A person arrives in a destination when he enters within its area—not before—and that conclusion does not change because someone or something blocks entry. Everyday examples of how people ordinarily use the phrase "arrives in" confirm this understanding.

Page Proof Pending Publication

Several features of statutory context support this ordinary-meaning reading. First, other provisions of the INA refer to both *actual* entrance and *attempted* entrance into the United States, but §§ 1158(a)(1) and 1225(a)(1) contain no reference to attempted entry, and this fact signals that Congress enacted the disparate language "'intentionally and purposely.'" *Keene Corp.* v. *United States*, 508 U. S. 200, 208. Second, the INA elsewhere refers to aliens who arrive *near* a land border, language Congress could have used but did not use in the provisions at issue. Third, Congress easily could have required inspection of any alien who "arrives at" or "reaches" the border, as it did in an earlier provision allowing asylum applications by aliens "at a land border or port of entry." § 1158(a) (1994 ed.). Fourth, Congress's 1996 amendment replacing "at a land border or port of entry" with "arrives in the United States" suggests that these phrases should not be read to have the same meaning and that the current phrase requires aliens to be present in the United States. Pp. 268–272.

Syllabus

(c) Respondents' principal textual argument rests on the canon against surplusage. They observe that § 1158(a)(1) allows asylum applications by aliens who "arriv[e] in the United States" and also by those "physically present in the United States," and they argue that the first phrase would be wholly redundant if read to require physical presence. This argument has some force but does not overcome the arguments pointing the opposite way. The anti-surplusage canon is not an iron rule; Congress sometimes "enacts provisions that are superfluous," *Microsoft Corp.* v. *i4i Ltd. Partnership*, 564 U. S. 91, 107. Here, the superfluity is only partial, not total, and it is understandable. The Illegal Immigration Reform and Immigrant Responsibility Act of 1996 both created expedited removal—a streamlined process for removal of arriving aliens—and inserted the "arrives in" language in § 1158(a)(1) to correspond with the event—arrival—that triggered that new removal process. In any event, the Court would choose an interpretation that entails some redundancy over one that contradicts what words usually mean. Pp. 272–275.

(d) Even if statutory text and context were not enough, the presumption against extraterritoriality would tip the scale against respondents' interpretation. Nothing in the text of § 1158(a)(1) or §§ 1225(a)(1) and (a)(3) manifests an unmistakable congressional intent to require that aliens be inspected and allowed to apply for asylum while they are outside the United States. The Court's interpretation links inspection and the asylum process to what occurs on the U. S. side of the border. Respondents' interpretation focuses on the other side of the border, giving the provisions extraterritorial reach. Pp. 275–276.

Public Domain Processing Document

(e) Respondents' remaining arguments fail. First, the Court's decision in *Sale* v. *Haitian Centers Council, Inc.*, 509 U. S. 155, forecloses respondents' argument that the Government's interpretation violates the Nation's obligations under the 1951 Convention Relating to the Status of Refugees, 189 U. N. T. S. 150, to which the United States acceded in 1968. The "text of Article 33" of the Convention, which respondents invoke, "cannot reasonably be read to say anything at all about a nation's actions toward aliens outside its own territory," 509 U. S., at 183. Second, respondents' concern that the Government's interpretation will create perverse incentives for illegal entry is overstated. Metering does not permanently bar any alien from arriving and applying for asylum. It merely delays entry, whereas illegal entry carries adverse legal effects including criminal liability, § 1325(a), and ineligibility for asylum and certain government benefits, §§ 1231(a)(5), 1621(a), 1641(b). Regardless, this concern cannot defeat the best reading of the statutory text. Last, respondents' argument that the Government might some-

Syllabus

day prevent all potential arriving asylum applicants from reaching the point where they could file an application addresses a hypothetical future policy, not the rescinded metering policy at issue, which merely delayed entry to improve conditions at certain ports of entry. Pp. 276–278.

138 F. 4th 1102, reversed and remanded.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, GORSUCH, KAVANAUGH, and BARRETT, JJ., joined. THOMAS, J., filed a concurring opinion, *post*, p. 279. SOTOMAYOR, J., filed a dissenting opinion, in which KAGAN and JACKSON, JJ., joined, *post*, p. 284. JACKSON, J., filed a dissenting opinion, *post*, p. 317.

Vivek Suri argued the cause for petitioners. With him on the briefs were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Deputy Solicitor General Gannon*, and *Deputy Assistant Attorney General Ensign.*

Kelsi Brown Corkran argued the cause for respondents. With her on the brief were *Jonathan L. Backer*, *Samuel P. Siegel*, *Melissa Crow*, *Rebecca Cassler*, *Suchita Mathur*, *Sarah M. Rich*, *Robert Pauw*, *Baher Azmy*, and *Angelo Guisado.**

Page Proof Pending Publication

---

*Briefs of *amici curiae* urging reversal were filed for America's Future et al. by *William J. Olson*, *Jeremiah L. Morgan*, and *Michael Boos*; for Federation for American Immigration Reform by *Christopher J. Hajec*; and for Sen. Ted Cruz et al. by *James R. Conde.*

Briefs of *amici curiae* urging affirmance were filed for Amnesty International USA et al. by *Erica L. Ross*, *Ian M. Kysel*, and *Michael Garcia Bochenek*; for Bipartisan Former Officials of the Department of Homeland Security et al. by *Raymond P. Tolentino* and *Alexander J. Kasner*; for the Constitutional Accountability Center by *Elizabeth B. Wydra* and *Brianne J. Gorod*; for HIAS, Inc., by *Alexandra Mansbach*, *Hyland Hunt*, and *Ruthanne M. Deutsch*; for the Kairos Center for Religions, Rights and Social Justice et al. by *Catherine E. Stetson* and *Katherine B. Wellington*; for Immigration Law Professors by *Alan Schoenfeld*; for Members of Congress by *Lindsay C. Harrison*; and for the United States Conference of Catholic Bishops by *William E. Evans*.

Sarah Paoletti and *Fatma Marouf* filed a brief of *amici curiae* for the Global Strategic Litigation Council et al.

JUSTICE ALITO delivered the opinion of the Court.

This case presents a straightforward question: whether an alien[1] who seeks to enter the United States[2] from Mexico "arrives *in* the United States" when he or she is still *in* Mexico. In the decision below, the United States Court of Appeals for the Ninth Circuit answered "yes." That is wrong. In ordinary speech, no one would say that a person "arrives *in*" a place—for example, a house, a city, or a country—before the person enters that place. The context in which the phrase "arrives in the United States" is used in the immigration statutes at issue here supports an ordinary-meaning reading. So does the presumption against extraterritoriality. We therefore reverse.

I

A

Page Proof Pending Publication

Two sections of the Immigration and Nationality Act of 1952 (INA or the Act), 66 Stat. 163, are central to this dispute. Congress adopted both provisions in substantially their current form in the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (IIRIRA), 110 Stat. 3009–546. And both provisions contain the phrase "arrives in the United States."

The first, 8 U. S. C. § 1225(a), governs the inspection of aliens who seek admission to the United States.[3] An alien

---

[1] The Immigration and Nationality Act (INA) defines an "alien" as "any person not a citizen or national of the United States." 8 U. S. C. § 1101(a)(3).

[2] The term "United States," "when used in a geographical sense," ordinarily means the "continental United States, Alaska, Hawaii, Puerto Rico, Guam, the Virgin Islands of the United States, and the Commonwealth of the Northern Mariana Islands." § 1101(a)(38).

[3] The provision states in part: "An alien present in the United States who has not been admitted or who *arrives in the United States* (whether or not at a designated port of arrival and including an alien who is brought to the United States after having been interdicted in international or